

Sompo

Excess Liability Coverage Follow Form (Short Form)

Policy Number: ELD30100174800
Effective Dates: October 16, 2025 To: October 16, 2026
Endurance American Specialty Insurance Company



Issuing Office:
633 West 5th Street
Suite 5100
Los Angeles, CA 90071
www.sompo-intl.com

SURPLUS LINES NOTICE

ARIZONA

PURSUANT TO ARIZONA REVISED STATUTES SECTION 20-401.01, SUBSECTION B. PARAGRAPH 1, THIS POLICY IS ISSUED BY AN INSURER THAT DOES NOT POSSESS A CERTIFICATE OF AUTHORITY FROM THE DIRECTOR OF THE ARIZONA DEPARTMENT OF INSURANCE. IF THE INSURER THAT ISSUED THIS POLICY BECOMES INSOLVENT, INSUREDS OR CLAIMANTS WILL NOT BE ELIGIBLE FOR INSURANCE GUARANTY FUND PROTECTION PURSUANT TO ARIZONA REVISED STATUTES TITLE 20.

**SOMPO**

Endurance American Specialty Insurance Company

(Wilmington, Delaware)

Policy No. ELD30100174800

Renewal of New

COMMERCIAL EXCESS LIABILITY DECLARATIONS PAGE

1. NAMED INSURED AND ADDRESS:

Canopy Roofing, LLC dba: Lyon's Roofing
Per Underlying Insurance
878 West Illini Street
Phoenix, AZ 85041

2. POLICY PERIOD:

12:01 a.m. Standard Time at the address of the
Insured shown at the left
From: 10/16/2025 **To:** 10/16/2026

**IN RETURN FOR PAYMENT OF THE
PREMIUM AND SUBJECT TO ALL TERMS
OF THIS POLICY, WE AGREE WITH YOU
TO PROVIDE THE INSURANCE AS STATED
IN THIS POLICY.**

PRODUCER'S NAME AND ADDRESS:

RSG Specialty LLC
5660 Greenwood Plaza Boulevard
Suite 500
Greenwood Village, CO 80111

3. PREMIUM: Total Advance Premium \$ 25,000
Service Charge N/A
Taxes N/A
Surcharge N/A
Total \$ 25,000

BASIS OF PREMIUM: Non-Auditable (X) Auditable ()

In the event of cancellation by the Named Insured, the company will receive and retain no less than \$ 6,250 as a policy minimum earned premium.

4. LIMITS OF INSURANCE: \$ 5,000,000 Each Occurrence Limit
\$ 5,000,000 Aggregate Limit (Where Applicable)

These Limits of Insurance apply in excess of the "underlying limits of insurance" indicated in Item 5. of the Declarations.

5. UNDERLYING INSURANCE: See attached schedule

6. FORMS AND ENDORSEMENTS applicable to all Coverage Forms and made part of this policy at time of issue are listed on the attached Forms and Endorsements Schedule EXL 0101.

ISSUING OFFICE:

633 West 5th Street, Suite 5100
Los Angeles, CA 90071

NOTE: SEE ENCLOSED NOTICE FOR "SURPLUS LINES NOTIFICATION"

Pursuant to section 20 401.01, subsection B, paragraph 1, Arizona Revised Statutes, this policy is issued by an insurer that does not possess a certificate of authority from the director of the Arizona department of insurance and financial institutions. If the insurer that issued this policy becomes insolvent, insureds or claimants will not be eligible for insurance guaranty fund protection pursuant to title 20, Arizona Revised Statutes

Policy Premium	\$25,000.00
TRIA	
Brokerage Fee	
Clearinghouse Fee	
Surplus Lines Tax	\$750.00
Stamping Office Fee	\$50.00
Total	\$25,800.00

FORMS AND ENDORSEMENT SCHEDULE

It is hereby understood and agreed the following forms and endorsements are attached to and are a part of this policy:

Form Number	Form Name
SN 9003 0914 AZ	SN - Arizona
EXL 0001 0615	Commercial Excess Liability Declarations Page
EXL 1302 0512	Claim Notice with Eclaim Notice
EXL 0102 0606	Schedule of Underlying Policies
EXL 6001 0813	Absolute Asbestos Exclusion
EXL 0592 0610	Absolute Communicable Disease Exclusion
EXL 0525 0813	Automobile Liability Exclusion
EXL 0506 0318	Care, Custody or Control Exclusion
EXL 0573 0606	Cyber Liability Exclusion
EXL 0511 0606	Errors and Omissions / Professional Liability Exclusion
EXL 0509 0124	Exclusion for Mold and Other Naturally-Occurring Contaminants
EXL 0516 0112	Exclusion-Violation of Information Statutes
EXL 0513 0606	Lead Exclusion
EXL 6066 0817	Nuclear Energy Liability Exclusion
EXL 3082 0124	PFAS and Similar Substances; No Recognition of Underlying Erosion
EXL 6071 0813	Pollution Exclusion With A Building Heating Equipment Exception And A Hostile Fire Exception - Contractors
EXL 6082 0813	Residential Work Except Apartments Exclusion
EXL 6088 0813	Silica, Silica-Related or Mixed Dust Exclusion
EXL 1323 0610	Sub-Limited Coverage Exclusion
EXL 0537 1206	Uninsured/Underinsured Motorist Exclusion
EXL 0562 0606	War Liability Exclusion
EXL 6126 0214	Wrap-Up and Project Specific Program Exclusion
EXL 3044 0318	Bankruptcy or Insolvency Condition Endorsement
EXL 6122 0318	Contractor's Limitation

IL 1201 0115	Exclusion of Certified Acts of Terrorism and Exclusion of Other Acts
EXL 0542 0606	Exterior Insulation and Finish System Endorsement
EXL 1301 0512	Service Of Suit Endorsement
IL 1313 1220	TRIA Rejection of Offer
EXL 0203 0813	Excess Liability Coverage Follow Form (Short Form)
IL 1008 0114	Signature Page
PN 0001 0721	U.S. Treasury Department's Office of Foreign Assets Control (OFAC)

CLAIM NOTICE

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

In the event of claim to which this policy may apply, please give immediate notice in any of the following ways, to:

U.S. Insurance - Claims
1221 Avenue of the Americas
New York, NY 10020
E-Mail addressed to: insuranceclaims@sompo-intl.com

E-mail is the preferred method of receiving claim notice information, but any of the above methods of notification will generate an acknowledgement of receipt of claim with a claim number and all of the claim adjusters' contact information.

SCHEDULE OF UNDERLYING POLICIES

Carrier, Policy Number and Period	Type of Coverage	Limits of Insurance
United Specialty Insurance Company On File with Company 10/16/2025 - 10/16/2026	General Liability	\$ 1,000,000 Each Occurrence \$ 2,000,000 General Aggregate \$ 2,000,000 Products/Completed Operations Aggregate \$ 1,000,000 Personal & Advertising Injury \$ 5,000,000 Aggregate Cap

ABSOLUTE ASBESTOS EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to:

Any liability, including, but not limited to “property damage”, “bodily injury”, settlements, judgments, costs, charges, expenses, costs of investigations, or the fees of attorneys, experts, or consultants arising out of or related in any way, either directly or indirectly, to:

1. asbestos, asbestos products, asbestos-containing materials or products, asbestos fibers or asbestos dust, including, but not limited to, manufacture, mining, use, sale, installation, removal, or distribution activities;
2. exposure to, testing for, monitoring of, cleaning up, removing, containing or treating of asbestos, asbestos products, asbestos-containing materials or products, asbestos fibers or asbestos dust; or
3. any obligation to investigate, settle or defend, or indemnify any person against any claim or “suit” arising out of or related in any way, either directly or indirectly, to asbestos, asbestos products, asbestos-containing materials or products, asbestos fibers or asbestos dust.

This endorsement does not change any other provision of the policy.

ABSOLUTE COMMUNICABLE DISEASE EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This insurance does not apply to any “loss”, liability, “bodily injury”, “property damage”, or “personal and advertising injury” expense or other form of damages and costs arising, in whole or in part, arising out of or involving the actual or alleged transmission of a “communicable disease.”

1. This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the:

- a.** Supervising, hiring, employing, training or monitoring of others that may be infected with and spread a “communicable disease”;
- b.** Testing for a “communicable disease”;
- c.** Failure to prevent the spread of the disease; or
- d.** Failure to report the disease to authorities.

“Communicable disease”, as used in this endorsement, means any sickness or malady capable of being transmitted.

This endorsement does not change any other provision of the policy.

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AUTOMOBILE LIABILITY EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

The following is added to the policy and supersedes anything to the contrary:

This policy does not apply to any liability arising out of the ownership, maintenance, operation, use, “loading or unloading” of any “auto”.

This endorsement does not change any other provision of the policy.

CARE, CUSTODY OR CONTROL EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to property damage to:

- A. Real or personal property owned, rented or occupied by you;
- B. Real or personal property used by or loaned to you;
- C. Real or personal property in your care, custody or control, or real and personal property over which you exercise physical control.

This endorsement does not change any other provision of the policy.

CYBER LIABILITY EXCLUSION

This endorsement changes the policy, please read it carefully.

This insurance does not apply to:

1. “Bodily injury”, “property damage”, “personal and advertising injury” arising, directly or indirectly, out of the loss of or alteration of any electronic data, electronic information, computer applications software, computer operations software or any other similar data, information or software in any computer hardware, computer system, computer network, or the “Internet”; or
2. “Bodily injury”, “property damage”, “personal and advertising injury” arising directly or indirectly out of damage to any computer hardware, computer system, computer network, or the “internet” as a result of 1. above.

“Internet” shall mean the worldwide public network of computers as it currently exists or may be manifested in the future, including the “internet”, an intranet, an extranet or a virtual public network.

This endorsement does not change any other provision of the policy.

ERRORS AND OMISSIONS / PROFESSIONAL LIABILITY EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any liability for any actual or alleged errors, designs or specifications errors, acts or omissions by the insured, or for acts or omissions by any other person for which the insured is legally liable, arising out of professional services performed by the insured in the conduct of the insured's operations.

This endorsement does not change any other provision of the policy.

EXCLUSION FOR MOLD AND OTHER NATURALLY-OCCURRING CONTAMINANTS

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

1. It is agreed that this policy shall not apply to any:
 - a. damages, loss, cost or expense of any nature whatsoever, including but not limited to any other claims, caused by, arising out of, giving rise to or in any way related to, in concurrence or in any sequence, with a cause for which coverage may be afforded under this policy, based upon or arising out of mold, mildew, "fungi", spores, viruses, bacteria, or any of their byproducts, or any other biological, etiological or other naturally occurring contaminant, or any of their byproducts;
 - b. duty to defend or other defense obligation associated with such mold, mildew, "fungi", spores, viruses, bacteria, or any of their byproducts, or any other biological, etiological or other naturally occurring contaminant, or any of their byproducts;
 - c. damages, obligations, claim, injury or expense associated with a request, demand or order from any body or individual, including but not limited to, any governmental body or action, that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of any mold, mildew, "fungi", spores, viruses, bacterial, or any of their byproducts, or any other biological, etiological or other naturally occurring contaminant, or any of their byproducts; or
 - d. damages, obligations, claim or injury associated with any materials, products, building components, building or structure that contains, harbors, nurtures or acts as a medium for any such mold, mildew, "fungi", spores, viruses, bacteria, or any of their byproducts, or any other biological, etiological or other naturally occurring contaminant, or any of their byproducts, regardless of any other cause, event, material, product or building component that contributed directly, indirectly, concurrently or in any sequence to the damages obligations, claim, injury or expense.
2. For purposes of this endorsement, "fungi" means any type or form of fungus, including mold or mildew and any mycotoxins, spores, scents or byproducts produced or released by "fungi".
3. To the extent that there is no similar language contained in the policy, the following will apply:

This insurance shall not become excess of any reduced or exhausted underlying aggregate limit to the extent that such reduction or exhaustion is the result of claims, damage, loss or expense arising out of or in any way related to claims excluded under this endorsement.

This endorsement does not change any other provision of the policy.

EXCLUSION-VIOLATION OF INFORMATION STATUTES

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to:

DISTRIBUTION OF MATERIAL IN VIOLATION OF STATUTES

"Bodily injury" or "property damage" or "personal and advertising injury" arising directly or indirectly out of any act or omission that violates or is alleged to violate:

- A. The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law; or
- B. The CAN-SPAM Act of 2003, including any amendment of or addition to such law; or
- C. The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transaction Act (FACTA); or
- D. Any statute, ordinance or regulation, other than the TCPA or CAN-SPAM Act of 2003, that prohibits or limits the sending, transmitting, communicating or distribution of material or information.

This endorsement does not change any other provision of the policy.

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LEAD EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to

- A. “bodily injury”, “property damage”, “personal and advertising injury” arising out of the actual, alleged or threatened;
 - 1. absorption, ingestion or inhalation of lead in any form by any person; or
 - 2. existence of lead in any form.
- B. any “loss”, cost or expense arising out of any request, demand, order or statutory or regulatory requirement
 - 1. that any Insured or others;
 - a. test for, monitor, clean up, remove, contain, treat, detoxify or neutralize lead in any form;
 - b. respond to, or assess, in any way the effects of lead in any form.

Because lead, and any other such irritant or contaminant, are pollutants, this exclusion applies in addition to any of the following exclusion that apply:

- A. the pollution exclusion in this policy; or
- B. any other pollution-related exclusion made part of this policy.

This endorsement does not change any other provision of the policy.

NUCLEAR ENERGY LIABILITY EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This policy does not apply to:

A. Any liability, injury or damage:

1. with respect to which any insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its Limits of Insurance; or
2. resulting from the “hazardous properties” of “nuclear material” and with respect to which (a) a person or organization is required to maintain financial protection pursuant to the Atomic energy Act of 1954, or any law amendatory thereof, or (b) any insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

B. Any injury or “nuclear property damage” resulting from the “hazardous properties” of “nuclear material”, if:

1. the “nuclear material” (a) is at any “nuclear facility” owned by, or operated by or on behalf of, any insured or (b) has been discharged or dispersed therefrom;
2. the “nuclear material” is contained in “spent fuel” or “nuclear waste” at any time possessed, handled, used, processed, stored, transported or disposed of by or on behalf of any insured; or
3. the injury or “nuclear property damage” arises out of the furnishing by any insured of services, materials, parts of equipment in connection with the planning, construction, maintenance, operation or use of any “nuclear facility”, but if such facility is located within the United States of America, its territories or possessions or Canada, this Exclusion B.3. applies only to “nuclear property damage” to such “nuclear facility” and any property therein.

C. As used in this exclusion:

1. “Hazardous properties” includes radioactive, toxic or explosive properties.
2. “Nuclear facility” means:
 - (a) any “nuclear reactor”;

- (b) any equipment or device designed or used for:
 - (1) separating the isotopes of uranium or plutonium;
 - (2) processing or utilizing “spent fuel”; or
 - (3) handling processing or packaging “nuclear waste”;
 - (c) any equipment or device used for the processing, fabricating or alloying of “special nuclear material” if at any time the total amount of such material in the custody of any insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235; or
 - (d) any structure, basin, excavation, premises or place prepared or used for the storage or disposal of, “nuclear waste”, and includes the site on which any of the foregoing is located, all operations considered on such site and all premises used for such operations.
- 3. “Nuclear material” means “source material”, “special nuclear material” or by-product material.
 - 4. “Nuclear property damage” includes all forms of radioactive contamination of property.
 - 5. “Nuclear reactor” means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.
 - 6. “Nuclear waste” means any “nuclear waste” material (a) containing “by-product material” other than the tailings of “nuclear waste” produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its “source material” content, and (b) resulting from the operation by any person or organization of any “nuclear facility” included within the definition of “nuclear facility” under Paragraph C.2.
 - 7. “Source material”, “special nuclear material”, and “by-product material” have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.
 - 8. “Spent fuel” means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a “nuclear reactor.”

This endorsement does not change any other provision of the policy.

PFAS AND SIMILAR SUBSTANCES EXCLUSION

THIS ENDORSEMENT CHANGES THIS POLICY, PLEASE READ IT CAREFULLY.

It is agreed that:

I. This insurance does not apply to:

- (1) Any damages, loss, cost or expense arising out of or in connection with actual or threatened injury or damage of any nature or kind directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, relating in any way to, contributed to by, resulting from, or otherwise in connection with, in whole or in part, "PFAS", including but not limited to:
 - (a) Manufacturing, handling, sale, distribution, marketing, installation, repair, removal, abatement, replacement, or handling of "PFAS" or products containing "PFAS";
 - (b) An actual, alleged, threatened or suspected discharge, dispersal, seepage, migration, release or escape of "PFAS", whether intentional or unintentional; or
 - (c) An actual, alleged, threatened or suspected consumption, ingestion, absorption, presence, inhalation or use of, contact with or exposure to, "PFAS", whether by direct or passive exposure.
- (2) Any loss, liability, damage, loss, cost or expense arising out of any:
 - (a) Request, demand, order or other requirement (whether statutory or regulatory) to test for, investigate for, monitor, clean up, abate, remove, remediate, contain, treat, detoxify or neutralize, dispose of, or in any way respond to, or assess the effects of "PFAS"; or
 - (b) Claim or suit by or on behalf of a governmental authority for damages because of testing for, investigating for, monitoring, cleaning up, abating, removing, remediation, containing, treating, detoxifying or neutralizing, disposing of or in any way respond to assessing the effects of "PFAS".

To the extent that there is no similar language contained in this policy, the following will apply:

It is further agreed that this insurance shall not become excess of any reduced or exhausted underlying aggregate limit to the extent that such reduction or exhaustion is the result of claims, damage, loss or expense arising out of or in any way related to claims excluded under this endorsement.

II. For purposes of this endorsement, the following definition applies:

"PFAS" means any:

- a. Chemical, material, substance or compound that is or contains fluorinated carbon compounds, per-and polyfluoroalkyl substances, or any derivatives thereof, including but not limited to perfluorobutanoic acid (PFBA), perfluorohexanoic acid (PFHxA), perfluoroheptanoic acid (PFHpA), perfluorooctane sulfonate (PFOS), perfluorooctanoic acid (PFOA), perfluorononanoic acid (PFNA), perfluorodecanoic acid (PFDA), perfluoroundecanoic acid (PFUnA), perfluorododecanoic acid (PFDoDA), perfluorobutane

sulfonic acid (PFBS), perfluorohexane sulfonic acid (PFHxS), perfluorooctane sulfonic acid (PFOSA), fluoroalkanoic acid, perfluorooctane sulfonamide (FOSA), perfluoroalkyl acid (PFAA), C- 8 or C8, GenX, hexafluoropropylene oxide (HFPO), aqueous film forming foam (AFFF), and any precursor or additive of any such chemical, material, substance or compound;

- b. Chemical, material, substance or compound that is identified or acknowledged by any federal, state, international or other governmental agency or authority of any jurisdiction, including but not limited to the United States Environmental Protection Agency (EPA), the Centers for Disease Control and Prevention (CDC), the European Chemicals Agency (ECHA), the Agency for Toxic Substances and Disease Registry (ATSDR), the National Institutes for Health (NIH), and the International Agency for Research on Cancer (IARC) as or to contain fluorinated carbon compounds or a per-and polyfluoroalkyl substance or to exhibit or demonstrate the same or similar harmful properties as a fluorinated carbon compound or per- or polyfluoroalkyl substance;
- c. Daughter compound, degradation by-product, additive, or derivative of any chemical, material, substance or compound described in Paragraphs a. or b. above, whether used as the sole active ingredient or in any combination with any other active ingredient; and
- d. Good or product, including containers, materials, parts or equipment, furnished in connection with any chemical, material, substance or compound described in Paragraphs a. and b. above.

This endorsement does not change any other provision of the policy.

POLLUTION EXCLUSION WITH A BUILDING HEATING EQUIPMENT EXCEPTION AND A HOSTILE FIRE EXCEPTION - CONTRACTORS

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

1. This insurance shall not apply to:

- a.** Any liability which would not have occurred in whole or in part but for the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

However, insofar as coverage is afforded by the "underlying insurance" for the full limits shown therein, paragraph **1. a.**, above of this exclusion does not apply to any liability:

- (1)** For bodily injury or property damage sustained within a building which is or was at any time occupied by, or rented or loaned to, any insured and caused by smoke, fumes, vapor or soot from equipment used to heat that building.
- (2)** Arising out of heat, smoke or fumes from a "hostile fire", unless that "hostile fire" occurred or originated at any premises, site or location:
- (a)** Which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste; or
- (b)** On which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations to test for, monitor, clean up, remove, contain, treat, detoxify, neutralize or in any way respond to, or assess the effects of "pollutants".

b. Any "loss", cost or expense arising out of any:

- (1)** Request, demand or order that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of "pollutants;" or
- (2)** Claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of "pollutants."

2. As used in this endorsement the following definitions apply:

- a.** "Hostile fire" means one which becomes uncontrollable or breaks out from where it is intended to be.
- b.** "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

This endorsement does not change any other provision of the policy.

RESIDENTIAL WORK EXCEPT APARTMENTS EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any liability arising out of your operations or “your work” on any “residential project”.

“Residential project” shall mean apartments, single and multi-family dwellings, townhouses, duplexes, condominiums or cooperatives, “mixed-use buildings”, timeshares, or any other place of domicile, and shall include appurtenant structures and common areas.

“Residential project” shall also include any building converted or being converted for individual or collective residential ownership.

“Mixed-use buildings” shall mean structures and improvements thereto, which contain both residential units and commercial space.

“Your work” and “suit” shall be as defined in the “underlying insurance”.

However, in so far as coverage is provided in the “underlying insurance”, this exclusion shall not apply to your operations or “your work”:

1. That is on or in commercial space in “mixed-use buildings”; or
2. On apartments (including those in “mixed-use buildings”) unless those apartments are converted or are being converted to condominiums or cooperatives (including any project converted or being converted for individual or collective residential ownership).

We shall have no duty or obligation to provide or pay for the investigation or defense of any loss, cost, expense, claim or “suit” excluded by this endorsement.

This endorsement does not change any other provision of the policy.

SILICA, SILICA-RELATED OR MIXED DUST EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any “loss”, liability, “bodily injury”, “property damage”, expense or other form of damages and costs arising, in whole or in part, arising out of or involving “mixed dust”, “silica”, “silica-related dust”, or any product containing “silica” or “silica-related dust”.

It is further agreed that this insurance does not apply to:

- A. Any “loss”, cost or expense, arising in whole or in part, out of the abating, testing, monitoring, remediating, neutralizing, removing or cleaning up of “mixed dust”, “silica”, “silica-related dust” or products and materials containing “silica” or “silica-related dust” by any insured or by any other person or entity;
- B. The cost of such actions as may be necessary to monitor, assess and evaluate the release or threat of “mixed dust”, “silica”, “silica-related dust” or products and materials containing “silica” or “silica-related dust”;
- C. The cost of disposal of “silica” substances or taking of such other action as may be necessary to temporarily or permanently prevent, minimize, or mitigate damage to the public health or welfare or to the environment, which may otherwise result by any insured or by any other person or entity; or
- D. The cost of compliance with any law or regulation regarding “mixed dust”, “silica” or “silica-related dust”.

"Silica" means silicon dioxide (occurring in crystalline, amorphous and impure forms), “silica” particles, “silica-related dust” or silica compounds.

"Silica-related dust" means a mixture or combination of “silica” and other dust or particles.

“Mixed dust” means inorganic or organic dusts that have harmful effects on natural persons.

This endorsement does not change any other provision of the policy.

SUB-LIMITED COVERAGE EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

It is agreed that this insurance policy shall not apply in excess of any “sub-limited” coverage(s) that are included within, or are a part of, any “underlying insurance” scheduled in this policy. “Sub-limited” coverage(s) are defined as any coverage(s) having limits of insurance less than the limit(s) of any “underlying insurance” included in the schedule of underlying policies.

This endorsement does not change any other provision of the policy.

UNINSURED / UNDERINSURED MOTORIST EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any obligation of the insured under a No Fault, Uninsured Motorist or Supplementary Uninsured/Underinsured Motorist Law, or under any similar law, regulation or ordinance.

This endorsement does not change any other provision of the policy.

WAR LIABILITY EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any liability arising out of any war, invasion, acts of foreign or domestic enemies, hostilities, (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation or nationalization or requisition or destruction of or damage to property including loss of access, by or under the order of any government, local authority or risks of contraband, illegal transportation or trade.

This endorsement does not change any other provisions of the policy.

WRAP-UP AND PROJECT SPECIFIC PROGRAM EXCLUSION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any liability arising out of either your ongoing operations or operations included within the “products-completed operations hazard” when such operations are covered within wrap-ups, joint ventures or owner-controlled, contractor-controlled, project-specific or site-specific project insurance programs on specific construction projects by the prime contractor, construction manager or owner of such construction project.

This exclusion applies whether or not the wrap-up, joint venture or owner-controlled, contractor-controlled, project-specific or site-specific project insurance program:

- A. Provides coverage identical to that provided by this policy;
- B. Has limits adequate to cover all claims; or
- C. Remains in effect.

This endorsement does not change any other provision of the policy.

BANKRUPTCY OR INSOLVENCY CONDITION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

The **Conditions** Section is amended to add the following **Condition**:

Bankruptcy or Insolvency

In the event of the bankruptcy or insolvency of any underlying insurer, the insurance afforded by this policy will not replace such “underlying insurance” or drop down to attach at a lower level, but will continue to apply as if the “underlying insurance” was available and collectible.

This endorsement does not change any other provision of the policy.

CONTRACTOR'S LIMITATION

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This policy does not apply to any liability for:

1. "Property damage to any property or equipment rented, leased or loaned to you;
2. "Property damage" to property being installed or erected by or for you;
3. "Bodily injury" or "property damage" arising out of any project for which you are, or ever were, included as an insured under any owner-controlled, or consolidated (wrap-up) insurance program, or project-specific or site-specific similar rating plan.

This exclusion applies whether or not the consolidated (wrap-up) insurance program or similar rating plan:

- a. Provides coverage identical to that provided by this policy;
 - b. Has limits adequate to cover all claims; or
 - c. Remains in effect;
4. "Bodily injury" or "property damage" arising out of any professional services performed by or for you, including but not limited to the preparation or approval of maps, plans, opinions, reports, surveys, designs or specifications, and any supervisory, inspection or engineering services;
 5. "Bodily injury" or "property damage" arising out of any Joint Venture or Partnership of which you are a member and which is not designated in this policy as a Named Insured; or
 6. "Property damage" to that particular part of real property on which work is being performed by or for you.

This endorsement does not change any other provision of the policy.

ENDORSEMENT

Named Insured: Canopy Roofing, LLC dba: Lyon's Roofing

Policy Number: ELD30100174800

Endorsement

Endorsement

Effective Date: October 16, 2025

Number: N/A

(12:01 AM Standard Time at the address of the **Named Insured** as shown in the Declarations)

EXCLUSION OF CERTIFIED ACTS OF TERRORISM AND EXCLUSION OF OTHER ACTS OF TERRORISM COMMITTED OUTSIDE THE UNITED STATES

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is agreed that:

A. This insurance does not apply to:

Terrorism

"Any injury or damage" arising directly or indirectly, out of a "certified act of terrorism" or out of an "other act of terrorism" that is committed outside of the United States (including its territories and possessions and Puerto Rico), but within the "coverage territory". However, with respect to an "other act of terrorism", this exclusion applies only when one or more of the following are attributed to such act.

1. The total of insured damage to all types of property exceeds \$ 25,000,000 (valued in US dollars). In determining whether the \$ 25,000,000 threshold is exceeded, we will include all insured damage sustained by property of all persons and entities affected by the terrorism and business interruption losses sustained by owners or occupants of the damaged property. For the purpose of this provision, insured damage means damage that is covered by any insurance plus damage that would be covered by any insurance but for the application of any terrorism exclusions; or
2. fifty or more persons sustain death or serious physical injury. For the purposes of this provision, serious physical injury means:
 - a. physical injury that involves a substantial risk of death; or
 - b. protracted and obvious physical disfigurement; or
 - c. protracted loss of or impairment of the function of a bodily member or organ; or
3. the terrorism involves the use or release or escape of nuclear materials, or directly or indirectly results in nuclear reaction or radiation or radioactive contamination; or
4. the terrorism is carried out by means of the dispersal or application of pathogenic or poisonous biological or chemical materials; or
5. pathogenic or poisonous biological or chemical materials are released, and it appears that one purpose of the terrorism was to release such materials.

ENDORSEMENT

With respect to this exclusion, Paragraph 1. and 2. describe the thresholds used to measure the magnitude of an Incident of an “other act of terrorism” and the circumstances in which the threshold will apply for the purpose of determining whether this exclusion will apply to that incident.

B. The following definitions are added:

1. For the purposes of this endorsement, “any injury or damage” means any injury or damage covered under this policy, or “underlying insurance” to which this endorsement is applicable, and includes but is not limited to any Loss, Claim or injury as may be defined in any applicable policy, or “underlying insurance”.
2. “Certified act of terrorism” means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a “certified act of terrorism” include the following:
 - a. The act resulted in insured losses in excess of \$ 5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 - b. The act resulted in damage:
 - i. Within the United States (including its territories and possessions and Puerto Rico); or
 - ii. Outside of the United States in the case of:
 - (a) An air carrier (as defined in Section 40102 of title 49, United States Code) or United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), regardless of where the loss occurs; or
 - (b) The premises of any United States mission; and
 - c. the act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals, as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
3. “Other act of terrorism” means a violent act or an act that is dangerous to human life, property or infrastructure that is committed by an individual or individuals and that appears to be part of an effort to coerce a civilian population or to influence the policy or affect the conduct of any government by coercion, and the act is not a “certified act of terrorism”. Multiple incidents of an “other act of terrorism” which occur within a seventy-two hour period and appear to be carried out in concert or to have a related purpose or common leadership shall be considered to be one incident.
4. “Coverage territory” means anywhere in the world with the exception of any country or jurisdiction which is subject to trade or other economic sanctions or embargo by the United States of America.

ENDORSEMENT

- C. In the event of any incident of a “certified act of terrorism” or an “other act of terrorism” that is not subject to this exclusion, coverage does not apply to any loss or damage that is otherwise excluded under this policy.



Authorized Representative

This endorsement does not change any other provision of the Policy. The title and any headings in this endorsement are solely for convenience and do not affect its meaning.

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EXTERIOR INSULATION AND FINISH SYSTEM ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

This insurance does not apply to any liability arising out or alleged to arise out of the “exterior insulation and finish hazard” as defined below:

“Exterior insulation and finish hazard” means the design, manufacture, construction, fabrication, preparation, installation, application, maintenance or repair, including remodeling, service, correction, or replacement of an “exterior insulation and finish system” or any part thereof, or any substantially similar system or any part thereof, including the application or use of conditioners, primers, accessories, flashings, coatings, caulking or sealants, in connection with such a system when performed by you; or

Any work or operations with respect to any exterior component, fixture or feature of any structure if an “exterior insulation and finish system” is used on any part of that structure when performed by you or on your behalf.

“Exterior insulation and finish system” means:

- A. a rigid or semi-rigid insulation board made of expanded polystyrene or other materials, and
- B. the adhesive and/or mechanical fasteners used to attach the insulation board to the substrate, and
- C. a reinforced base coat, and
- D. a finish coat providing surface texture and color.

This endorsement does not change any other provision of the policy.

SERVICE OF SUIT ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY, PLEASE READ IT CAREFULLY.

In the event of failure of the Company to pay any amount claimed to be due under the terms of this policy, the Company, at the request of the Insured, will submit to the jurisdiction of a court of competent jurisdiction within the United States. Nothing in this condition constitutes or should be understood to constitute a waiver of the Company's rights to commence an action in any court of competent jurisdiction in the United States to remove an action to a United States District Court or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States. In any suit instituted against the Company upon this policy, the Company will abide by the final decision of such court or of any appellate court in the event of appeal.

It is further agreed that service of process in such suit may be made upon the Senior Vice President - Claims, 1221 Avenue of the Americas New York, NY 10020.

Further, pursuant to any statute of any state, territory, or district of the United States which makes provision therefore, the Company hereby designates the Superintendent, Commissioner or Director of Insurance, or other officer specified for that purpose in the statute, as its true and lawful attorney upon whom service may be made of any lawful process in any action, suit, or proceeding instituted by or on behalf of the Insured or any beneficiary hereunder arising out of this policy of insurance and hereby designates the above named Senior Vice President - Claims as the person to whom the said officer is authorized to mail such process or a true copy thereof.

This endorsement does not change any other provision of the policy.

ENDORSEMENT

Named Insured: Canopy Roofing, LLC dba: Lyon's Roofing

Policy Number: ELD30100174800

Endorsement

Endorsement

Effective Date: October 16, 2025

Number: N/A

12:01 AM Standard Time at the address of the
Named Insured as shown in the Declarations.

DISCLOSURE PURSUANT TO TERRORISM RISK INSURANCE ACT - REJECTION OF OFFER

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is agreed that:

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF YOUR POLICY IN RESPONSE TO THE DISCLOSURE REQUIREMENTS OF THE TERRORISM RISK INSURANCE ACT. THIS ENDORSEMENT DOES NOT GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

A. Rejection of Offer

You have rejected the offer of terrorism coverage for Acts of Terrorism that are certified under the Terrorism Risk Insurance Act as reauthorized and amended, as an Act of Terrorism. An exclusion of terrorism losses has been made a part of this policy.

B. Disclosure of Federal Participation in Payment of Terrorism Losses

The United States government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals 80% of that portion of the amount of such insured losses that exceeds the applicable insurer retention.

You have rejected this offer of coverage.



Authorized Representative

This endorsement does not change any other provision of the Policy. The title and any headings in this endorsement are solely for convenience and do not affect its meaning.

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EXCESS LIABILITY COVERAGE FOLLOW FORM (SHORT FORM)

Read the entire policy carefully to determine rights, duties and what is and is not covered. Throughout this policy the words “you” and “your” refer to the Named Insured. The words “we”, “us” and “our” refer to the Company providing this insurance. The word “insured” means any person or organization qualifying as such in the “first underlying insurance” which is the controlling policy listed in Item 5 of the Declarations, unless designated otherwise in the Declarations. Other words and phrases that appear in quotation marks have special meaning and can be found in the **DEFINITIONS** Section or the specific policy provision where they appear.

In consideration of the payment of the premium and in reliance upon the statements in the Declarations, we agree with you to provide coverage as follows:

INSURING AGREEMENTS

I. COVERAGE

We will pay on behalf of the insured the amount of “loss” covered by this insurance in excess of the “underlying limits of insurance” subject to the **LIMITS OF INSURANCE** Section. This policy will follow form to the terms, conditions, definitions, and exclusions of the “first underlying insurance” in effect the first day of the Policy Period, except to the extent that the terms, conditions, definitions, and exclusions of this policy differ from the “first underlying insurance.” In no event shall this policy provide broader coverage than is provided by any policy in the “underlying insurance” shown in Item 5. of the Declarations, except if specifically provided otherwise by endorsement.

II. LIMITS OF INSURANCE

- A. The Each Occurrence limit stated in Item 4. of the Declarations is the most we will pay for all “loss” arising out of any one occurrence to which this policy applies.
- B. The aggregate limit shown in Item 4. of the Declarations is the most we will pay for all “loss” that is subject to an aggregate limit provided by the “first underlying insurance” and shall apply in the same manner as the aggregate limits provided by the “first underlying insurance”.
- C. This policy applies only in excess of the “underlying limits of insurance” and only after the “underlying limits of insurance” have been exhausted.

III. DEFENSE

We will follow the Defense provisions of the “first underlying insurance”. In the event there are no Defense provisions contained in the “first underlying insurance”, we will have the right, but not the duty to be associated with you or your underlying insurer or both in the investigation of any claim or defense of any suit which in our opinion may create liability to our policy for “loss.” If we exercise such right, we will do so at our own expense, but we will have no such expense obligation or liability once the Limits of Insurance are exhausted.

IV. PREMIUM

If any additional premium charge is made to the “underlying insurance” during the Policy Period or if there is an increase in the risk assumed by us, our premium may be adjusted.

V. DEFINITIONS

- A. “Loss” means those sums actually paid in the settlement or satisfaction of a claim which you are legally obligated to pay as damages, including but not limited to “bodily injury” and “property damage”, after making proper deductions for all recoveries and salvage.

- B. “Underlying limits of insurance” means the sum of the limits of all applicable “underlying insurance” listed in Item 5. of the Declarations, including self-insured retentions (SIRs), deductibles or other forms of insurance or self-insurance applicable to a given claim or occurrence.

VI. CONDITIONS

A. Changes

This policy can only be changed by a written endorsement signed by one of our authorized representatives that becomes a part of this policy.

B. First Named Insured Duties

The person or organization first named in Item 1. of the Declarations is responsible for the payment of all premiums. The first Named Insured will act on behalf of all other Named Insureds for the giving and receiving of notice of cancellation or the receipt of any return premium that become payable.

C. Maintenance of “Underlying Insurance”

During the period of this policy, you agree to keep all “underlying insurance” in full force and effect and that the “underlying limits of insurance” will be maintained, except to the extent such limits may be reduced or exhausted by payment for “loss” covered by “underlying insurance.” If you fail to comply with these requirements, we will only be liable to the same extent that we would have been had you fully complied with these requirements.

D. Notice of Occurrence

You must see to it that we are notified as soon as practicable of an occurrence which may result in a claim or suit which may involve this policy. If a claim or suit against any insured is reasonably likely to involve this policy you must notify us in writing as soon as practicable.

If the “underlying limits of insurance” are exhausted solely by payment of “loss”, no insured will, except at their own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our written consent.

E. Other Insurance

If other insurance applies to a “loss” that is also covered by this policy, this policy will apply excess of the other insurance. However, this provision will not apply if the other insurance is specifically written to be excess of this policy. Other insurance includes any type of self-insurance or other mechanism by which an insured arranges for funding of legal liabilities.

F. Conformity to Statute

Any terms of this policy which are in conflict with the terms of any applicable law or regulation governing this policy are hereby amended to conform to such laws and regulations.

G. When “Loss” is Payable

Coverage under this policy will not apply unless and until the insured or the insured’s “underlying insurance” is obligated to pay the full amount of the “underlying limits of insurance.”

When the amount of “loss” has finally been determined, we will promptly pay on behalf of the insured the amount of “loss” falling within the terms of this policy.

If the insured has rights to recover all or part of any payment we have made under this policy, then those rights are transferred to us and the insured must do nothing to impair those rights. At our request the insured will bring suit or transfer those rights to us to enforce them.



**Endurance American Specialty Insurance Company
1221 Avenue of the Americas
New York, NY 10020**

IN WITNESS WHEREOF, the Insurer has caused this Policy to be signed by its President and Senior Vice President and countersigned where required by law on the Declarations page by its duly authorized representative.

Senior Vice President

President

POLICYHOLDER NOTICE

U. S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL (OFAC)

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's website - <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.